union which regards the secondary end, to which bondage is opposed since a woman cannot be at once mate and slave.

Reply to Objection 3: As in the Mosaic law it was allowable by dispensation to grant a bill of divorce in order to avoid wife-murder (as we shall state further on, Q[67], A[6]), so by the same dispensation Abraham was allowed to send Agar away, in order to signify the mystery which the Apostle explains (Gal. 4:22, seqq.). Again, that this son did not inherit belongs to the mystery, as explained in the same place. Even so Esau, the son of a free woman, did not inherit (Rom. 9:13, seqq.). In like manner on account of the mystery it came about that the sons of Jacob born of bond and free women inherited, as Augustine says (Tract. xi in Joan.) because "sons and heirs are born to Christ both of good ministers denoted by the free woman and of evil ministers denoted by the bondswoman."

OF BIGAMY AND OF THE IRREGULARITY CONTRACTED THEREBY (FIVE ARTICLES)

In the next place we must consider bigamy and the irregularity contracted thereby. Under this head there are five points of inquiry:

(1) Whether irregularity attaches to the bigamy that consists in having two successive wives?

(2) Whether irregularity is contracted by one who has two wives at once?

(3) Whether irregularity is contracted by marrying one who is not a virgin?

(4) Whether bigamy is removed by Baptism?

(5) Whether a dispensation can be granted to a bigamous person?

Whether irregularity attaches to bigamy?

Objection 1: It would seem that irregularity is not attached to the bigamy that consists in having two wives successively. For multitude and unity are consequent upon being. Since then non-being does not cause plurality, a man who has two wives successively, the one in being, the other in non-being, does not thereby become the husband of more than one wife, so as to be debarred, according to the Apostle (1 Tim. 3:2; Titus 1:6), from the episcopate.

Objection 2: Further, a man who commits fornication with several women gives more evidence of incontinence than one who has several wives successively. Yet in the first case a man does not become irregular. Therefore neither in the second should he become irregular.

Objection 3: Further, if bigamy causes irregularity, this is either because of the sacrament, or because of the carnal intercourse. Now it is not on account of the former, for if a man had contracted marriage by words of the present and, his wife dying before the consummation of the marriage, he were to marry another, he would become irregular, which is against the decree of Innocent III (cap. Dubium, De bigamia). Nor again is it on account of the second, for then a man who had committed fornication with several women would become irregular: which is false. Therefore bigamy nowise causes irregularity.

I answer that, By the sacrament of order a man is appointed to the ministry of the sacraments; and he who has to administer the sacraments to others must suffer from no defect in the sacraments. Now there is a defect in a sacrament when the entire signification of the sacrament is not found

therein. And the sacrament of marriage signifies the union of Christ with the Church, which is the union of one with one. Therefore the perfect signification of the sacrament requires the husband to have only one wife, and the wife to have but one husband; and consequently bigamy, which does away with this, causes irregularity. And there are four kinds of bigamy: the first is when a man has several lawful wives successively; the second is when a man has several wives at once, one in law, the other in fact; the third, when he has several successively, one in law, the other in fact; the fourth, when a man marries a widow. Accordingly irregularity attaches to all of these.

There is another consequent reason assigned, since those who receive the sacrament of order should be signalized by the greatest spirituality, both because they administer spiritual things, namely the sacraments, and because they teach spiritual things, and should be occupied in spiritual matters. Wherefore since concupiscence is most incompatible with spirituality, inasmuch as it makes a man to be wholly carnal, they should give no sign of persistent concupiscence, which does indeed show itself in bigamous persons, seeing that they were unwilling to be content with one wife. The first reason however is the better.

Reply to Objection 1: The multitude of several wives at the same time is a multitude simply, wherefore a multitude of this kind is wholly inconsistent with the signification of the sacrament, so that the sacrament is voided on that account. But the multitude of several successive wives is a multitude relatively, wherefore it does not entirely destroy the signification of the sacrament, nor does it void the sacrament in its essence but in its perfection, which is required of those who are the dispensers of sacraments.

Reply to Objection 2: Although those who are guilty of fornication give proof of greater concupiscence, theirs is not a so persistent concupiscence, since by fornication one party is not bound to the other for ever; and consequently no defect attaches to the sacrament.

Reply to Objection 3: As stated above, bigamy causes irregularity, because it destroys the perfect signification of the sacrament: which signification is seated both in the union of minds, as expressed by the consent, and in the union of bodies. Wherefore bigamy must affect both of these at the same time in order to cause irregularity. Hence the decree of Innocent III disposes of the statement of the Master (Sent. iv, D, 27), namely that consent alone by words of the present is sufficient to cause irregularity.

Whether irregularity results from bigamy, when one husband has two wives, one in law, the other in fact?

Objection 1: It would seem that irregularity does not result from bigamy when one husband has two wives at the same time, one in law and one in fact. For when the sacrament is void there can be no defect in the sacrament. Now when a man marries a woman in fact but not in law there is no sacrament, since such a union does not signify the union of Christ with the Church. Therefore since irregularity does not result from bigamy except on account of a defect in the sacrament, it would seem that no irregularity attaches to bigamy of this kind.

Objection 2: Further, if a man has intercourse with a woman whom he has married in fact and not in law, he commits fornication if he has not a lawful wife, or adultery if he has. But a man does not become irregular by dividing his flesh among several women by fornication or adultery. Therefore neither does he by the aforesaid kind of bigamy.

Objection 3: Further, it may happen that a man, before knowing carnally the woman he has married in law, marries another in fact and not in law, and knows her carnally, whether the former woman be living or dead. Now this man has contracted marriage with several women either in law or in fact, and yet he is not irregular, since he has not divided his flesh among several women. Therefore irregularity is not contracted by reason of the aforesaid kind of bigamy.

I answer that, Irregularity is contracted in the two second kinds of bigamy, for although in the one there is no sacrament, there is a certain likeness to a sacrament. Wherefore these two kinds are secondary, and the first is the principal kind in causing irregularity.

Reply to Objection 1: Although there is no sacrament in this case there is a certain likeness to a sacrament, whereas there is no such likeness in fornication or adultery. Hence the comparison fails.

This suffices for the Reply to the Second Objection.

Reply to Objection 3: In this case the man is not reckoned a bigamist, because the first marriage lacked its perfect signification. Nevertheless if, by the judgment of the Church, he be compelled to return to his first wife and carnally to know her, he becomes irregular forthwith, because the irregularity is the result not of the sin but of imperfect signification.

Whether irregularity is contracted by marrying one who is not a virgin?

Objection 1: It would seem that irregularity is not contracted by marrying one who is not a virgin. For a man's own defect is a greater impediment to him than the defect of another. But if the man himself who marries is not a virgin he does not become irregular. Therefore much less does he if his wife is not a virgin.

Objection 2: Further, it may happen that a man marries a woman after corrupting her. Now, seemingly, such a man does not become irregular, since he has not divided his flesh among several, nor has his wife done so, and yet he marries a woman who is not a virgin. Therefore this kind of bigamy does not cause irregularity.

Objection 3: Further, no man can become irregular except voluntarily. But sometimes a man marries involuntarily one who is not a virgin, for instance when he thinks her a virgin and afterwards, by knowing her carnally, finds that she is not. Therefore this kind does not always cause irregularity.

Objection 4: Further, unlawful intercourse after marriage is more guilty than before marriage. Now if a wife, after the marriage has been consummated, has intercourse with another man, her husband does not become irregular, otherwise he would be punished for his wife's sin. Moreover, it might happen that, after knowing of this, he pays her the debt at her asking, before she is accused and convicted of adultery. Therefore it would seem that this kind of bigamy does not cause irregularity.

On the contrary, Gregory says (Regist. ii, ep. 37): "We command thee never to make unlawful ordinations, nor to admit to holy orders a bigamist, or one who has married a woman that is not a virgin, or one who is unlettered, or one who is deformed in his limbs, or bound to do penance or to perform some civil duty, or who is in any state of subjection."

I answer that, In the union of Christ with the Church unity is found on either side. Consequently whether we find division of the flesh on the part of the husband, or on the part of the wife, there is a defect of sacrament. There is, however, a difference, because on the part of the husband it is

required that he should not have married another wife, but not that he should be a virgin, whereas on the part of the wife it is also required that she be a virgin. The reason assigned by those versed in the Decretals is because the bridegroom signifies the Church militant which is entrusted to the care of a bishop, and in which there are many corruptions, while the spouse signifies Christ Who was a virgin: wherefore virginity on the part of the spouse, but not on the part of the bridegroom, is required in order that a man be made a bishop. This reason, however, is expressly contrary to the words of the Apostle (Eph. 5:25): "Husbands, love your wives, as Christ also loved the Church," which show that the bride signifies the Church, and the bridegroom Christ; and again he says (Eph. 5:23): "Because the husband is the head of the wife, as Christ is the head of the Church." Wherefore others say that Christ is signified by the bridegroom, and that the bride signifies the Church triumphant in which there is no stain. Also that the synagogue was first united to Christ as a concubine; so that the sacrament loses nothing of its signification if the bridegroom previously had a concubine. But this is most absurd, since just as the faith of ancients and of moderns is one, so is the Church one. Wherefore those who served God at the time of the synagogue belonged to the unity of the Church in which we serve God. Moreover this is expressly contrary to Jer. 3:14, Ezech. 16:8, Osee 2:16, where the espousals of the synagogue are mentioned explicitly: so that she was not as a concubine but as a wife. Again, according to this, fornication would be the sacred sign [sacramentum] of that union, which is absurd. Wherefore heathendom, before being espoused to Christ in the faith of the Church, was corrupted by the devil through idolatry. Hence we must say otherwise that irregularity is caused by a defect in the sacrament itself. Now when corruption of the flesh occurs outside wedlock on account of a preceding marriage, it causes no defect in the sacrament on the part of the person corrupted, but it causes a defect in the other person, because the act of one who contracts marriage terminates not in himself, but in the other party, wherefore it takes its species from its term, which, moreover, in regard to that act, is the matter as it were of the sacrament. Consequently if a woman were able to receive orders, just as her husband becomes irregular through marrying one who is not a virgin, but not through his not being a virgin when he marries, so also would a woman become irregular if she were to marry a man who is not a virgin, but not if she were no longer a virgin when she married ---unless she had been corrupted by reason of a previous marriage.

This suffices for the Reply to the First Objection.

Reply to Objection 2: In this case opinions differ. It is, however, more probable that he is not irregular, because he has not divided his flesh among several women.

Reply to Objection 3: Irregularity is not the infliction of a punishment, but the defect of a sacrament. Consequently it is not always necessary for bigamy to be voluntary in order to cause irregularity. Hence a man who marries a woman, thinking her to be a virgin, whereas she is not, becomes irregular by knowing her carnally.

Reply to Objection 4: If a woman commits fornication after being married, her husband does not become irregular on that account, unless he again knows her carnally after she has been corrupted by adultery, since otherwise the corruption of the wife nowise affects the marriage act of the husband. But though he be compelled by law to pay her the debt, or if he do so at her request, being compelled by his own conscience, even before she is convicted of adultery, he becomes irregular, albeit opinions differ on this point. However, what we have said is more probable, since here it is not a question of sin, but of signification only.

Whether bigamy is removed by Baptism?

Objection 1: It would seem that bigamy is removed by Baptism. For Jerome says in his commentary on the Epistle to Titus (1:6, "the husband of one wife") that if a man has had several wives before receiving Baptism, or one before and another after Baptism, he is not a bigamist. Therefore bigamy is removed by Baptism.

Objection 2: Further, he who does what is more, does what is less. Now Baptism removes all sin, and sin is a greater thing than irregularity. Therefore it removes irregularity.

Objection 3: Further, Baptism takes away all punishment resulting from an act. Now such is the irregularity of bigamy. Therefore, etc.

Objection 4: Further, a bigamist is irregular because he is deficient in the representation of Christ. Now by Baptism we are fully conformed to Christ. Therefore this irregularity is removed.

Objection 5: Further, the sacraments of the New Law are more efficacious than the sacraments of the Old Law. But the sacraments of the Old Law removed irregularities according to the Master's statement (Sent. iv,). Therefore Baptism also, being the most efficacious of the sacraments of the New Law, removes the irregularity consequent upon bigamy.

On the contrary, Augustine says (De Bono Conjug. xviii): "Those understand the question more correctly who maintain that a man who has married a second wife, though he was a catechumen or even a pagan at the time, cannot be ordained, because it is a question of a sacrament, not of a sin."

Further, according to the same authority (De Bono Conjug. xviii) "a woman who has been corrupted while a catechumen or a pagan cannot after Baptism be consecrated among God's virgins." Therefore in like manner one who was a bigamist before Baptism cannot be ordained.

I answer that, Baptism removes sin, but does not dissolve marriage. Wherefore since irregularity results from marriage, it cannot be removed by Baptism, as Augustine says (De Bono Conjug. xviii).

Reply to Objection 1: In this case Jerome's opinion is not followed: unless perhaps he wished to explain that he means that a dispensation should be more easily granted.

Reply to Objection 2: It does not follow that what does a greater thing, does a lesser, unless it be directed to the latter. This is not so in the case in point, because Baptism is not directed to the removal of an irregularity.

Reply to Objection 3: This must be understood of punishments consequent upon actual sin, which are, or have yet to be, inflicted: for one does not recover virginity by Baptism, nor again undivision of the flesh.

Reply to Objection 4: Baptism conforms a man to Christ as regards the virtue of the mind, but not as to the condition of the body, which is effected by virginity or division of the flesh.

Reply to Objection 5: Those irregularities were contracted through slight and temporary causes, and consequently they could be removed by those sacraments. Moreover the latter were ordained for that purpose, whereas Baptism is not.

Whether it is lawful for a bigamist to receive a dispensation?

Objection 1: It would seem unlawful for a bigamist to be granted a dispensation. For it is said (Extra, De bigamis, cap. Nuper): "It is not lawful to grant a dispensation to clerics who, as far as they could do so, have taken to themselves a second wife."

Objection 2: Further, it is not lawful to grant a dispensation from the Divine law. Now whatever is in the canonical writings belongs to the Divine law. Since then in canonical Scripture the Apostle says (1 Tim. 3:2): "It behooveth . . . a bishop to be . . . the husband of one wife," it would seem that a dispensation cannot be granted in this matter.

Objection 3: Further, no one can receive a dispensation in what is essential to a sacrament. But it is essential to the sacrament of order that the recipient be not irregular, since the signification which is essential to a sacrament is lacking in one who is irregular. Therefore he cannot be granted a dispensation in this.

Objection 4: Further, what is reasonably done cannot be reasonably undone. If, therefore, a bigamist can lawfully receive a dispensation, it was unreasonable that he should be irregular: which is inadmissible.

On the contrary, Pope Lucius granted a dispensation to the bishop of Palermo who was a bigamist, as stated in the gloss on can. Lector, dist. 34.

Further, Pope Martin [*Martinus Bracarensis: cap. xliii] says: "If a Reader marry a widow, let him remain a Reader, or if there be need for it, he may receive the Subdiaconate, but no higher order: and the same applies if he should be a bigamist." Therefore he may at least receive a dispensation as far as the Subdiaconate.

I answer that, Irregularity attaches to bigamy not by natural, but by positive law; nor again is it one of the essentials of order that a man be not a bigamist, which is evident from the fact that if a bigamist present himself for orders, he receives the character. Wherefore the Pope can dispense altogether from such an irregularity; but a bishop, only as regards the minor orders, though some say that in order to prevent religious wandering abroad he can dispense therefrom as regards the major orders in those who wish to serve God in religion.

Reply to Objection 1: This Decretal shows that there is the same difficulty against granting a dispensation in those who have married several wives in fact, as if they had married them in law; but it does not prove that the Pope has no power to grant a dispensation in such cases.

Reply to Objection 2: This is true as regards things belonging to the natural law, and those which are essential to the sacraments, and to faith. But in those which owe their institution to the apostles, since the Church has the same power now as then of setting up and of putting down, she can grant a dispensation through him who holds the primacy.

Reply to Objection 3: Not every signification is essential to a sacrament, but that alone which belongs to the sacramental effect,* and this is not removed by irregularity. [*Leonine edition reads "officium," some read "effectum"; the meaning is the same, and is best rendered as above.]

Reply to Objection 4: In particular cases there is no ratio that applies to all equally, on account of their variety. Hence what is reasonably established for all, in consideration of what happens in the majority of cases, can be with equal reason done away in a certain definite case.

OF THE BILL OF DIVORCE (SEVEN ARTICLES)

We must now consider the bill of divorce, under which head there are seven points of inquiry:
(1) Whether the indissolubility of marriage is of natural law?
(2) Whether by dispensation it may become lawful to put away a wife?
(3) Whether it was lawful under the Mosaic law?
(4) Whether a wife who has been divorced may take another husband?
(5) Whether the husband can marry again the wife whom he has divorced?
(6) Whether the cause of divorce was hatred of the wife?
(7) Whether the reasons for divorce had to be written on the bill?

Whether inseparableness of the wife is of natural law?

Objection 1: It would seem that inseparableness of the wife is not of natural law. For the natural law is the same for all. But no law save Christ's has forbidden the divorcing of a wife. Therefore inseparableness of a wife is not of natural law.

Objection 2: Further, the sacraments are not of the natural law. But the indissolubility of marriage is one of the marriage goods. Therefore it is not of the natural law.

Objection 3: Further, the union of man and woman in marriage is chiefly directed to the begetting, rearing, and instruction of the offspring. But all things are complete by a certain time. Therefore after that time it is lawful to put away a wife without prejudice to the natural law.

Objection 4: Further, the good of the offspring is the principal end of marriage. But the indissolubility of marriage is opposed to the good of the offspring, because, according to philosophers, a certain man cannot beget offspring of a certain woman, and yet he might beget of another, even though she may have had intercourse with another man. Therefore the indissolubility of marriage is against rather than according to the natural law.

On the contrary, Those things which were assigned to nature when it was well established in its beginning belong especially to the law of nature. Now the indissolubility of marriage is one of these things according to Mat. 19:4,6. Therefore it is of natural law.

Further, it is of natural law that man should not oppose himself to God. Yet man would, in a way, oppose himself to God if he were to sunder "what God hath joined together." Since then the indissolubility of marriage is gathered from this passage (Mat. 19:6) it would seem that it is of natural law.

I answer that, By the intention of nature marriage is directed to the rearing of the offspring, not merely for a time, but throughout its whole life. Hence it is of natural law that parents should lay up for their children, and that children should be their parents' heirs (2 Cor. 12:14). Therefore, since the offspring is the common good of husband and wife, the dictate of the natural law requires the latter to live together for ever inseparably: and so the indissolubility of marriage is of natural law.

Reply to Objection 1: Christ's law alone brought mankind "to perfection" [*Cf. Heb. 7:19] by bringing man back to the state of the newness of nature. Wherefore neither Mosaic nor human laws could remove all that was contrary to the law of nature, for this was reserved exclusively to "the law of the spirit of life" [*Cf. Rom. 8:2].

Reply to Objection 2: Indissolubility belongs to marriage in so far as the latter is a sign of the perpetual union of Christ with the Church, and in so far as it fulfills an office of nature that is directed to the good of the offspring, as stated above. But since divorce is more directly incompatible with the signification of the sacrament than with the good of the offspring, with which it is

incompatible consequently, as stated above (Q[65], A[2], ad 5), the indissolubility of marriage is implied in the good of the sacrament rather than in the good of the offspring, although it may be connected with both. And in so far as it is connected with the good of the offspring, it is of the natural law, but not as connected with the good of the sacrament.

The Reply to the Third Objection may be gathered from what has been said.

Reply to Objection 4: Marriage is chiefly directed to the common good in respect of its principal end, which is the good of the offspring; although in respect of its secondary end it is directed to the good of the contracting party, in so far as it is by its very nature a remedy for concupiscence. Hence marriage laws consider what is expedient for all rather than what may be suitable for one. Therefore although the indissolubility of marriage hinder the good of the offspring with regard to some individual, it is proportionate with the good of the offspring absolutely speaking: and for this reason the argument does not prove.

Whether it may have been lawful by dispensation to put away a wife?

Objection 1: It seems that it could not be lawful by dispensation to put away a wife. For in marriage anything that is opposed to the good of the offspring is against the first precepts of the natural law, which admit of no dispensation. Now such is the putting away of a wife, as stated above (A[1]). Therefore, etc.

Objection 2: Further, a concubine differs from a wife especially in the fact that she is not inseparably united. But by no dispensation could a man have a concubine. Therefore by no dispensation could he put his wife away.

Objection 3: Further, men are as fit to receive a dispensation now as of old. But now a man cannot receive a dispensation to divorce his wife. Neither, therefore, could he in olden times.

On the contrary, Abraham carnally knew Agar with the disposition of a husband towards his wife, as stated above (Q[65], A[5], ad 2,3). Now by Divine command he sent her away, and yet sinned not. Therefore it could be lawful by dispensation for a man to put away his wife.

I answer that, In the commandments, especially those which in some way are of natural law, a dispensation is like a change in the natural course of things: and this course is subject to a twofold change. First, by some natural cause whereby another natural cause is hindered from following its course: it is thus in all things that happen by chance less frequently in nature. In this way, however, there is no variation in the course of those natural things which happen always, but only in the course of those which happen frequently. Secondly, by a cause altogether supernatural, as in the case of miracles: and in this way there can be a variation in the course of nature, not only in the course which is appointed for the majority of cases, but also in the course which is appointed for all cases, as instanced by the sun standing still at the time of Josue, and by its turning back at the time of Ezechias, and by the miraculous eclipse at the time of Christ's Passion [*Jos. 10:14; 4 Kings 20:10; Is. 38:8; Mat. 27:15]. In like manner the reason for a dispensation from a precept of the law of nature is sometimes found in the lower causes, and in this way a dispensation may bear upon the secondary precepts of the natural law, but not on the first precepts because these are always existent as it were, as stated above (Q[65], A[1]) in reference to the plurality of wives and so forth. But sometimes this reason is found in the higher causes, and then a dispensation may be given by God even from the first precepts of the natural law, for the sake of signifying or showing some

Divine mystery, as instanced in the dispensation vouchsafed to Abraham in the slaying of his innocent son. Such dispensations, however, are not granted to all generally, but to certain individual persons, as also happens in regard to miracles. Accordingly, if the indissolubility of marriage is contained among the first precepts of the natural law, it could only be a matter of dispensation in this second way; but, if it be one of the second precepts of the natural law, it could be a matter of dispensation even in the first way. Now it would seem to belong rather to the secondary precepts of the natural law. For the indissolubility of marriage is not directed to the good of the offspring, which is the principal end of marriage, except in so far as parents have to provide for their children for their whole life, by due preparation of those things that are necessary in life. Now this preparation does not pertain to the first intention of nature, in respect of which all things are common. And therefore it would seem that to put away one's wife is not contrary to the first intention of nature, and consequently that it is contrary not to the first but to the second precepts of the natural law. Therefore, seemingly, it can be a matter of dispensation even in the first way.

Reply to Objection 1: The good of the offspring, in so far as it belongs to the first intention of nature, includes procreation, nourishment, and instruction, until the offspring comes to perfect age. But that provision be made for the children by bequeathing to them the inheritance or other goods belongs seemingly to the second intention of the natural law.

Reply to Objection 2: To have a concubine is contrary to the good of the offspring, in respect of nature's first intention in that good, namely the rearing and instruction of the child, for which purpose it is necessary that the parents remain together permanently; which is not the case with a concubine, since she is taken for a time. Hence the comparison fails. But in respect of nature's second intention, even the having of a concubine may be a matter of dispensation as evidenced by Osee 1.

Reply to Objection 3: Although indissolubility belongs to the second intention of marriage as fulfilling an office of nature, it belongs to its first intention as a sacrament of the Church. Hence, from the moment it was made a sacrament of the Church, as long as it remains such it cannot be a matter of dispensation, except perhaps by the second kind of dispensation.

Whether it was lawful to divorce a wife under the Mosaic law?

Objection 1: It would seem that it was lawful to divorce a wife under the Mosaic law. For one way of giving consent is to refrain from prohibiting when one can prohibit. It is also unlawful to consent to what is unlawful. Since then the Mosaic law did not forbid the putting away of a wife and did no wrong by not forbidding it, for "the law . . . is holy" (Rom. 7:12), it would seem that divorce was at one time lawful.

Objection 2: Further, the prophets spoke inspired by the Holy Ghost, according to 2 Pet. 1:21. Now it is written (Malachi 2:16): "When thou shalt hate her, put her away." Since then that which the Holy Ghost inspires is not unlawful, it would seem that it was not always unlawful to divorce a wife.

Objection 3: Further, Chrysostom [*Hom. xxxii in the Opus Imperfectum falsely ascribed to St. John Chrysostom] says that even as the apostles permitted second marriages, so Moses allowed the bill of divorce. But second marriages are not sinful. Therefore neither was it sinful under the Mosaic law to divorce a wife.

Objection 4: On the contrary, our Lord said (Mat. 19:8) that Moses granted the Jews the bill of divorce by reason of the hardness of their heart. But their hardness of heart did not excuse them from sin. Neither therefore did the law about the bill of divorce.

Objection 5: Further, Chrysostom says [*Hom. xxxii in the Opus Imperfectum falsely ascribed to St. John Chrysostom] that "Moses, by granting the bill of divorce, did not indicate the justice of God, but deprived their sin of its guilt, for while the Jews acted as though they were keeping the law, their sin seemed to be no sin."

I answer that, on this point there are two opinions. For some say that under the Law those who put away their wives, after giving them a bill of divorce, were not excused from sin, although they were excused from the punishment which they should have suffered according to the Law: and that for this reason Moses is stated to have permitted the bill of divorce. Accordingly they reckon four kinds of permission: one by absence of precept, so that when a greater good is not prescribed, a lesser good is said to be permitted: thus the Apostle by not prescribing virginity, permitted marriage (1 Cor. 7). The second is by absence of prohibition: thus venial sins are said to be permitted because they are not forbidden. The third is by absence of prevention, and thus all sins are said to be permitted by God, in so far as He does not prevent them whereas He can. The fourth is by omission of punishment, and in this way the bill of divorce was permitted in the Law, not indeed for the sake of obtaining a greater good, as was the dispensation to have several wives, but for the sake of preventing a greater evil, namely wife-murder to which the Jews were prone on account of the corruption of their irascible appetite. Even so they were allowed to lend money for usury to strangers, on account of corruption in their concupiscible appetite, lest they should exact usury of their brethren; and again on account of the corruption of suspicion in the reason they were allowed the sacrifice of jealousy, lest mere suspicion should corrupt their judgment. But because the Old Law, though it did not confer grace, was given that it might indicate sin, as the saints are agreed in saying, others are of opinion that if it had been a sin for a man to put away his wife, this ought to have been indicated to him, at least by the law or the prophets: "Show My people their wicked doings" (Is. 58:1): else they would seem to have been neglected, if those things which are necessary for salvation and which they knew not were never made known to them: and this cannot be admitted, because the righteousness of the Law observed at the time of the Law would merit eternal life. For this reason they say that although to put away one's wife is wrong in itself, it nevertheless became lawful by God's permitting it, and they confirm this by the authority of Chrysostom, who says [*Hom. xxxii in the Opus Imperfectum falsely ascribed to St. John Chrysostom] that "the Lawgiver by permitting divorce removed the guilt from the sin." Although this opinion has some probability the former is more generally held: wherefore we must reply to the arguments on both sides [*Cf. FS, Q[105], A[4], ad 8; FS, Q[108], A[3], ad 2; Contra Gentes iii, cap. 123].

Reply to Objection 1: He who can forbid, sins not by omitting to forbid if he has no hope of correcting, but fears by forbidding to furnish the occasion of a greater evil. Thus it happened to Moses: wherefore acting on Divine authority he did not forbid the bill of divorce.

Reply to Objection 2: The prophets, inspired by the Holy Ghost, said that a wife ought to be put away, not as though this were a command of the Holy Ghost, but as being permitted lest greater evils should be perpetrated.

Reply to Objection 3: This likeness of permission must not be applied to every detail, but only to the cause which was the same in both cases, since both permissions were granted in order to avoid some form of wickedness.

Reply to Objection 4: Although their hardness of heart excused them not from sin, the permission given on account of that hardness excused them. For certain things are forbidden those who are healthy in body, which are not forbidden the sick, and yet the sick sin not by availing themselves of the permission granted to them.

Reply to Objection 5: A good may be omitted in two ways. First, in order to obtain a greater good, and then the omission of that good becomes virtuous by being directed to a greater good; thus Jacob rightly omitted to have only one wife, on account of the good of the offspring. In another way a good is omitted in order to avoid a greater evil, and then if this is done with the authority of one who can grant a dispensation, the omission of that good is not sinful, and yet it does not also become virtuous. In this way the indissolubility of marriage was suspended in the law of Moses in order to avoid a greater evil, namely wife-murder. Hence Chrysostom says that "he removed the guilt from the sin." For though divorce remained inordinate, for which reason it is called a sin, it did not incur the debt of punishment, either temporal or eternal, in so far as it was done by Divine permission: and thus its guilt was taken away from it. And therefore he says again [*Hom. xxxii in the Opus Imperfectum falsely ascribed to St. John Chrysostom] that "divorce was permitted, an evil indeed, yet lawful." Those who hold the first opinion understand by this only that divorce incurred the debt of temporal punishment.

Whether it was lawful for a divorced wife to have another husband?

Objection 1: It would seem that it was lawful for a divorced wife to have another husband. For in divorce the husband did a greater wrong by divorcing his wife than the wife by being divorced. But the husband could, without sin, marry another wife. Therefore the wife could without sin, marry another husband.

Objection 2: Further, Augustine, speaking about bigamy, says (De Bono Conjug. xv, xviii) that "when it was the manner it was no sin." Now at the time of the Old Law it was the custom for a wife after divorce to marry another husband: "When she is departed and marrieth another husband," etc. Therefore the wife sinned not by marrying another husband.

Objection 3: Further, our Lord showed that the justice of the New Testament is superabundant in comparison with the justice of the Old Testament (Mat. 5). Now He said that it belongs to the superabundant justice of the New Testament that the divorced wife marry not another husband (Mat. 5:32). Therefore it was lawful in the Old Law.

Objection 4: On the contrary, are the words of Mat. 5:32, "He that shall marry her that is put away committeth adultery." Now adultery was never permitted in the Old Law. Therefore it was not lawful for the divorced wife to have another husband.

Objection 5: Further, it is written (Dt. 24:3) that a divorced woman who marries another husband "is defiled, and is become abominable before the Lord." Therefore she sinned by marrying another husband.

I answer that, According to the first above mentioned opinion (A[3]), she sinned by marrying another husband after being divorced, because her first marriage still held good. For "the woman . . . whilst her husband liveth, is bound to the law of her husband" (Rom. 7:2): and she could not have several husbands at one time. But according to the second opinion, just as it was lawful by virtue of the Divine dispensation for a husband to divorce his wife, so could the wife marry another

husband, because the indissolubility of marriage was removed by reason of the divine dispensation: and as long as that indissolubility remains the saying of the Apostle holds.

Accordingly to reply to the arguments on either side:

Reply to Objection 1: It was lawful for a husband to have several wives at one time by virtue of the divine dispensation: wherefore having put one away he could marry another even though the former marriage were not dissolved. But it was never lawful for a wife to have several husbands. Wherefore the comparison fails.

Reply to Objection 2: In this saying of Augustine manner [mos] does not signify custom but good manners; in the same sense a person is said to have manners [morigeratus] because he has good manners; and "moral" philosophy takes its name from the same source.

Reply to Objection 3: Our Lord shows the superabundance of the New Law over the Old in respect of the counsels, not only as regards those things which the Old Law permitted, but also as regards those things which were forbidden in the Old Law, and yet were thought by many to be permitted on account of the precepts being incorrectly explained---for instance that of the hatred towards our enemies. and so is it in the matter of divorce.

Reply to Objection 4: The saying of our Lord refers to the time of the New Law, when the aforesaid permission was recalled. In the same way we are to understand the statement of Chrysostom [*Hom. xii in the Opus Imperfectum falsely ascribed to St. John Chrysostom], who says that "a man who divorces his wife according to the law is guilty of four crimes: for in God's sight he is a murderer," in so far as he has the purpose of killing his wife unless he divorce her; "and because he divorces her without her having committed fornication," in which case alone the law of the Gospel allows a man to put away his wife; "and again, because he makes her an adulteress, and the man whom she marries an adulterer."

Reply to Objection 5: A gloss observes here: "She is defiled and abominable, namely in the judgment of him who first put her away as being defiled," and consequently it does not follow that she is defiled absolutely speaking; or she is said to be defiled just as a person who had touched a dead or leprous body was said to be unclean with the uncleanness, not of sin, but of a certain legal irregularity. Wherefore a priest could not marry a widow or a divorced woman.

Whether a husband could lawfully take back the wife he had divorced?

Objection 1: It would seem that a husband could lawfully take back the wife he had divorced. For it is lawful to undo what was ill done. But for the husband to divorce his wife was ill done. Therefore it was lawful for him to undo it, by taking back his wife.

Objection 2: Further, it has always been lawful to be indulgent to the sinner, because this is a moral precept, which obtains in every law. Now the husband by taking back the wife he had divorced was indulgent to one who had sinned. Therefore this also was lawful.

Objection 3: Further, the reason given (Dt. 24:4) for its being unlawful to take back a divorced wife was "because she is defiled." But the divorced wife is not defiled except by marrying another husband. Therefore at least it was lawful to take back a divorced wife before she married again.

On the contrary, It is said (Dt. 24:4) that "the former husband cannot take her again," etc.

I answer that, In the law concerning the bill of divorce two things were permitted, namely for the husband to put away the wife, and for the divorced wife to take another husband; and two things